Deposition Objection Response Cheat Sheet

Core Rule (FRCP 30(c)(2)):

Objections must be concise, nonargumentative, and nonsuggestive. The witness must answer despite objections, except to preserve a privilege, enforce a court-ordered limitation, or to present a motion to terminate/suspend.

Quick Decision Tree

• Form only? → Say "Noted." Rephrase or proceed. Witness answers.

• Privilege/order? → Ask for specific basis. Narrow to non-privileged facts. If still blocked: certify → move on (consider motion).

• Speaking/coaching? → Caution on the record; proceed; escalate if repeated (FRCP 30(d)(2)).

• Obstruction/harassment? → Short break → call the court (if allowed) or adjourn and move for relief.

What To Do When You Hear an Objection

• Pause so the record captures the objection. Don't talk over counsel.

• Identify the type: form vs. privilege/order vs. speaking/coaching.

• If form: decide to rephrase (cleaner record) or proceed ("You can answer.").

• If instruction not to answer: request the precise basis (privilege/order). Narrow and seek non-privileged facts.

• If persistent blocking on important topic: certify the question for court intervention.

Go-To Scripts (Say it exactly like this)

After "Objection to form.":

• "Noted. I'll rephrase: [new question]." —or— "Noted. You can answer."

If counsel instructs not to answer (privilege claimed):

• "Please state the precise basis for the instruction. Without revealing privileged communications, answer to the extent you can by stating underlying facts."

When opposing counsel speaks/coaches:

• "Counsel, objections must be concise and nonsuggestive. Please limit to form. Let's proceed."

To certify and move on:

• "Let's certify that question and move on. We'll seek relief if necessary."

To call the court (if permitted):

• “We’re at an impasse on a material area. I propose we call chambers for guidance.”

When an Instruction Not to Answer Is Proper

• To preserve a privilege (attorney-client, work product, etc.).

• To enforce a court-ordered limitation (protective order, scope order).

• To present a motion to terminate/suspend due to bad-faith or abusive conduct.

Local Practice Reminders (Arizona / Most Federal Judges)

• Many judges adopt FRCP 30 straight; some have standing deposition orders — review before the depo.

• If calling chambers mid-depo is allowed, have the number ready. If not, state intent to move and proceed.

• Keep a running list of certified questions and exhibits to streamline any motion practice.

Pro Tips

• Ask single-issue, foundation-tight questions to reduce form objections.

• Use yes/no first, then short follow-ups for control.

• Have a privilege vs. facts script ready. Mark key questions for certification as you go.

Deposition Exhibit List: Turnage v. HHS

Category 1: Core EEO Case File Documents

These are foundational documents that frame the entire dispute.

- **Exhibit 1:** Report of Investigation (ROI), HHS-IHS-0296-2023. (Have clean, tabbed copies of each witness's sworn affidavit from the ROI: Turnage, Ward Lund, Lee, Benjamin, White, Krumenacker).
- **Exhibit 2:** Complainant's Formal EEO Complaint (dated April 13, 2023).
- **Exhibit 3:** Agency's Letter of Acceptance of Formal Complaint.
- **Exhibit 4:** The December 2022 Hostile Work Environment complaint filed by Mr. Turnage and four other nurses against Ms. Tonie Greve.
- **Exhibit 5:** The complaint filed by Mr. Turnage against Ms. Brandi Benjamin with Ms. Candace Lee regarding the September 2024 incident in Employee Health.
- **Exhibit 6:** Any written findings, reports, or closing documents related to the investigations (or lack thereof) into the complaints listed in Exhibits 4 and 5.

Category 2: Key Communications (Emails & Notes)

This is the paper trail. These documents will be used to confront witnesses with their own words.

- **Exhibit 7:** The March 3, 2023 email from Mr. Turnage to Debra Ward Lund (This is the sexual harassment complaint against Candace Lee).
- **Exhibit 8:** The December 2022 Holiday Card from Candace Lee to Mr. Turnage (containing the note: "P.S. I still don't regret that hug!").
- **Exhibit 9:** The email from Mr. Turnage to Brandi Benjamin on the morning of March 21, 2023 (in which she became aware of his prior EEO activity).

- **Exhibit 10:** The March 22, 2023 email from Ashley Krumenacker to Jason White (stating: "The statement you have drafted does not accurately reflect our conversation nor what I witnessed yesterday.").
- **Exhibit 11:** The April 4, 2023 email from employee Ms. Nash to Debra Ward Lund (praising Mr. Turnage's professionalism and ability to de-escalate situations).
- **Exhibit 12:** Debra Ward Lund's email reply to Ms. Nash (dismissing her concerns as "kind words" and copying Brandi Benjamin).

Category 3: Personnel and Administrative Records

These official records will establish timelines and prove procedural violations.

- **Exhibit 13:** Mr. Turnage's complete FMLA request packet submitted in January 2023.
- **Exhibit 14:** Any written notices from management to Mr. Turnage regarding his FMLA paperwork being "incomplete" (to establish non-compliance with the 7-day cure notice rule).
- **Exhibit 15:** The final, approved FMLA paperwork (April 13, 2023).
- **Exhibit 16:** Mr. Turnage's PMAP for the rating period ending Dec. 31, 2022 (both the initial flawed version rated 3.3 and the revised version rated 3.5).
- **Exhibit 17:** Mr. Turnage's PMAPs from prior rating periods to establish a history of successful performance.
- **Exhibit 18:** The official notice placing Mr. Turnage on Administrative Leave (March 21, 2023), including any written justification provided under 5 U.S.C. § 6329b.
- **Exhibit 19:** The official notice placing Mr. Turnage on the 120-day detail (effective April 2023).

- **Exhibit 20:** The Position Descriptions (PDs) for both the Supervisory Clinical Nurse (GS-12) position and the Policy Officer (GS-12) detail position.
- **Exhibit 21:** The formal letter of authorization (or lack thereof) appointing Jason White as the investigator for the March 21 incident.
- **Exhibit 22:** Resignation letters/statements from Nurse Barr and Nurse Nastassia James (if they attribute their departure to a hostile work environment created by Ms. Greve or Ms. Benjamin).
- **Exhibit 23:** Documentation related to the rescinded promotion/job offer for Nurse Frost.

Category 4: Agency Policies and Procedures

Use the agency's own rules to show they were violated.

- **Exhibit 24:** Agency Policy on Handling EEO Complaints (specifically sections on confidentiality and the role of management).
- **Exhibit 25:** Agency Policy on Workplace Violence and Threat Assessment (this will show whether calling the police was justified).
- **Exhibit 26:** Agency Policy on FMLA Administration (to contrast with their failure to provide a written cure notice).
- **Exhibit 27:** Agency Policy on Administrative Investigations (to show the conflict of interest in appointing Jason White and the requirement for a final report).
- **Exhibit 28:** Agency Policy on Administrative Leave and Investigative Leave (to check for compliance with federal law, 5 U.S.C. § 6329b).
- **Exhibit 29:** Agency Policy on Records Retention (for emails, Teams chats, and security footage).

- **Exhibit 30:** Agency Organizational Charts for the relevant period (showing the direct chain of command).

Category 5: Law Enforcement & Security Records

Objective, third-party records are powerful evidence.

- **Exhibit 31:** The Phoenix Police Department CAD report or Incident Report for the call made on March 21, 2023.
- **Exhibit 32:** Internal Security logs or incident reports related to escorting Mr. Turnage from the facility.
- **Exhibit 33:** Preservation requests and responses for security video/audio footage for March 21, 2023, and September 2024.
- **Exhibit 34:** Badge access logs for all involved parties for March 21, 2023.
- **Exhibit 35:** Any written report or summary of findings from Jason White's administrative investigation (or confirmation that none exists).

MEMORANDUM

TO: Case File

FROM: Kevin Turnage

DATE: October 18, 2025

SUBJECT: Analysis of Agency Policy and Legal Violations in Turnage v. HHS (HHS-IHS-0296-2023)

I. Introduction

The purpose of this memorandum is to identify and document specific procedural and substantive violations committed by the Department of Health and Human Services (HHS) and Indian Health Service (IHS) management in the case of Kevin Turnage. This analysis is based on a comprehensive review of the Report of Investigation (ROI), including sworn affidavits from the Complainant and management officials, and cross-references these facts with the Agency's own governing policies, the Whistleblower Protection Act (WPA), and applicable federal regulations.

II. Analysis of Violations

A. Violation: Performance Management (PMAP) Procedural Failures

1. **Facts of the Case:** On or about March 2, 2023, Complainant received a PMAP score of 3.3 for the 2022 rating period from his supervisor, Jason White, which was approved by his second-line supervisor, Candace Lee. The rating was later revised to 3.5 after Complainant grieved the appraisal. Management officials Debra Ward Lund and Candace Lee both admitted in their affidavits that the initial PMAP was issued with an entire section left incomplete. (ROI, Exhibits F-3, F-4).
2. **Governing Rule/Policy:**

- HHS Instruction 430-1, Section 430-1-40(G)(4) requires Rating Officials to "Ensure that plans meet all requirements as outlined in this policy."
- The HHS PMAP Handbook, under "Roles of the Rating Official," states that the assigned rating "reflects the level of the employee's performance as assessed against the standards established in the performance plan" and requires a review of "all appropriate sources" to ensure a "complete picture of the employee's performance for the entire performance period."

3. **Analysis of Violation:** Management's failure to complete an entire section of the PMAP before issuing a final rating is a direct violation of its obligation to ensure the plan meets all policy requirements. This procedural error, admitted by two separate managers, demonstrates that the review was neither thorough nor accurate. It suggests a perfunctory and careless process, which substantiates the Complainant's claim that the PMAP was not a legitimate assessment of his performance but rather a component of a broader retaliatory scheme.

B. Violation: Retaliation for Protected Whistleblower Activity (Prohibited Personnel Practice)

1. **Facts of the Case:** Mr. Turnage engaged in multiple instances of protected activity:
   - **December 2022:** Assisted nurses in filing a hostile work environment (HWE) complaint against Ms. Tonie Greve. (ROI, Exhibit F-1)
   - **March 3, 2023:** Filed an internal sexual harassment complaint against his second-line supervisor, Candace Lee. (ROI, Exhibit F-1)
   - **March 21, 2023:** Informed his direct supervisor, Brandi Benjamin, via email of his prior EEO activity concerning the HWE complaint. (ROI, Exhibit F-5)
   - On that same day, March 21, 2023, based on an uncorroborated allegation from Ms. Benjamin, senior management placed Mr. Turnage on administrative

leave, escorted him from the building, and subsequently placed him on a 120-day punitive detail. (ROI, Exhibit F-3)

2. **Governing Rule/Policy:** The Whistleblower Protection Act (WPA), codified at 5 U.S.C. § 2302(b)(8) and (b)(9), defines it as a Prohibited Personnel Practice (PPP) for any employee with personnel authority to "take or fail to take, or threaten to take or fail to take, a personnel action" against an employee for making a protected disclosure (b)(8) or for exercising any appeal, complaint, or grievance right (b)(9). Personnel actions explicitly include a "detail, transfer, or reassignment" and "any other significant change in duties, responsibilities, or working conditions." (5 U.S.C. § 2302(a)(2)(A)).
3. **Analysis of Violation:** The temporal proximity between Mr. Turnage's protected activities and the adverse personnel actions is exceptionally close, creating a strong inference of retaliatory motive. The decision to remove him from his supervisory role occurred on the very day he notified his supervisor of prior EEO activity and shortly after he filed a serious complaint against a member of the management team. Management's actions—administrative leave, removal from the worksite, and a punitive detail—are precisely the types of personnel actions the WPA is designed to prevent when used to punish or dissuade whistleblowing.

C. Violation: Witness Coercion and Obstruction of an Investigation (Prohibited Personnel Practice)

1. **Facts of the Case:** Management appointed Jason White to "investigate" the March 21st incident involving Mr. Turnage. Witness Ashley Krumenacker provided sworn testimony that after she was interviewed, Mr. White drafted a statement for her to sign that "does not accurately reflect our conversation nor what I witnessed yesterday."

(ROI, Exhibit F-7, referencing an email sent March 22, 2023). This indicates Mr. White attempted to create a false record to support a predetermined outcome.

2. **Governing Rule/Policy:** 5 U.S.C. § 2302(b)(4) makes it a Prohibited Personnel Practice to "deceive or willfully obstruct any person with respect to such person's right to compete for employment." While often applied to hiring, its principles extend to obstructing any process, like a fact-finding investigation, that affects an individual's employment status and rights. Furthermore, such an act violates the basic tenets of a fair and impartial investigation as required by due process.
3. **Analysis of Violation:** Mr. White's action of preparing an inaccurate witness statement constitutes an attempt to deceive and willfully obstruct a legitimate inquiry. By attempting to generate false evidence, he interfered with the fact-finding process that was used as the basis for the adverse actions against Mr. Turnage. This act is a clear PPP and further evidence that the investigation was a pretext to justify a retaliatory personnel action.

D. Violation: Investigator Conflict of Interest

1. **Facts of the Case:** Management appointed Jason White to investigate the March 21 incident. At the time, Mr. White was a direct subordinate of Candace Lee (ROI, Exhibit F-6), the subject of Mr. Turnage's recent sexual harassment complaint. The outcome of Mr. White's "investigation" was used to justify removing Mr. Turnage, who had just become an adversary to Mr. White's direct supervisor.
2. **Governing Rule/Policy:** HHS Instruction 752-1-70(A) requires management to conduct a "thorough inquiry into any apparent offense… to ensure the objective consideration of all relevant facts." While not explicitly prohibiting this conflict, the principles of administrative due process and federal ethics standards require

investigations to be impartial. Appointing an investigator who reports directly to an involved party fundamentally compromises objectivity.

3. **Analysis of Violation:** Assigning a subordinate to investigate an incident involving an employee who has filed a complaint against the subordinate's own supervisor creates an undeniable conflict of interest. Mr. White was not in a position to be objective, as his findings could impact his own supervisor, Ms. Lee. This appointment violates the spirit and intent of a fair and objective inquiry, rendering the entire investigation procedurally defective and reinforcing the claim that it was a pretext for retaliation.

E. Violation: Improper Use of Administrative Leave

1. **Facts of the Case:** On March 21, 2023, management placed Mr. Turnage on "administrative leave" pending an investigation into alleged misconduct. He was in this status for approximately ten days. (ROI, Exhibit F-3).
2. **Governing Rule/Policy:**
   - The Administrative Leave Act of 2016, implemented in 5 U.S.C. § 6329b and HHS Policy 630-2, Section 630-2-170, created a separate category of leave called "Investigative Leave" for situations where an employee is the subject of an investigation.
   - HHS Policy 630-2, Section 630-2-40(M), defines an "investigative entity" as including "supervisors, managers, human resources practitioners… or other agency representatives."
   - "Administrative Leave for Investigation Purpose" is subject to a 10-workday calendar year limitation under 5 U.S.C. § 6329a.
3. **Analysis of Violation:** Management miscategorized the leave. Because Mr. Turnage was placed on paid leave pending an investigation by his supervisors (an

"investigative entity"), his absence should have been coded as "Investigative Leave" under 5 U.S.C. § 6329b, not general administrative leave. By using the incorrect leave category, the Agency failed to comply with the specific procedural requirements and tracking mandates of the Administrative Leave Act. This procedural error indicates either a lack of training or a deliberate disregard for proper administrative procedure.

F. Violation: Failure to Provide FMLA "Cure" Notice

1. **Facts of the Case:** Management officials, including Brandi Benjamin, testified that Mr. Turnage's FMLA paperwork, submitted in January 2023, was "incomplete," causing a delay in its approval until April 2023. There is no evidence in the record that management provided Mr. Turnage with a formal written notice detailing the deficiencies. (ROI, Exhibits F-1, F-5).
2. **Governing Rule/Policy:** 29 CFR § 825.305(c) states: "The employer must provide the employee with seven calendar days (unless not feasible under the particular circumstances despite the employer's diligent good faith efforts) to cure any such deficiency. If the deficiencies specified by the employer are not cured in the resubmitted certification, the employer may deny the taking of FMLA leave." This notice of deficiency must be in writing.
3. **Analysis of Violation:** The Agency violated federal law by failing to provide Mr. Turnage with a formal written notice specifying why his FMLA certification was considered deficient and giving him the mandatory seven-day period to cure the deficiencies. Simply stating verbally or via email that paperwork is "incomplete" does not satisfy the regulation. This procedural failure directly caused a months-long delay in the approval of his FMLA request, constituting an interference with his rights under the FMLA.

G. Violation: Failure to Investigate Employee Complaints

1. **Facts of the Case:** The ROI indicates that management failed to formally investigate or resolve at least two separate complaints filed by Mr. Turnage:
   - The December 2022 HWE complaint filed on behalf of himself and four other nurses. (ROI, Exhibit F-1)
   - A subsequent complaint filed against Brandi Benjamin in September 2024 regarding a confrontation in the Employee Health unit (as noted in deposition prep materials).
2. **Governing Rule/Policy:**
   - HHS Instruction 771-1, Administrative Grievance Procedure, and IHS Manual Chapter 7-5 establish a formal, two-stage process for resolving employee grievances. These policies create a clear expectation that management will provide a "thorough and meaningful review" and a "final written decision that fully explains whether the relief requested will be granted or not and the reasons for that decision." (Instruction 771-1, Section 771-1-50(B)(1)).
   - The IHS "HIPAA/PA Fact-Finding Investigations" policy states, "It is the policy… to investigate all privacy complaints brought forth by individuals." While specific to HIPAA, this reflects a general duty to investigate formal complaints.
3. **Analysis of Violation:** Management's inaction on these complaints constitutes a failure to adhere to its own established grievance procedures. By ignoring formal complaints, management denied Mr. Turnage and his colleagues their right to a review and resolution. This pattern of ignoring complaints filed *by* Mr. Turnage, while aggressively pursuing complaints filed *against* him, provides powerful evidence of disparate treatment and retaliatory animus.

III. Conclusion

The evidence contained within the Report of Investigation, when measured against the Agency's own policies and federal law, reveals a pattern of significant and repeated violations by HHS/IHS management. These are not minor administrative errors but systemic failures that include improper performance evaluation, procedural violations of the FMLA and Administrative Leave Act, and a failure to follow internal grievance policies. Most critically, the facts demonstrate a clear nexus between Mr. Turnage's protected EEO activity and a series of adverse personnel actions, which were facilitated by a biased investigation fraught with a conflict of interest and an attempt to coerce a witness. Cumulatively, these actions constitute multiple Prohibited Personnel Practices and a clear case of retaliation for protected whistleblowing.

Authorization & Conflict-of-Interest Checklist (HHS/IHS Investigations)

A. Internal Investigator (Federal employee)

☐ Assignment/Delegation: Written assignment on file (office, authority cited, scope, dates).

☐ Privacy Act "need-to-know" confirmed for records access (identify system(s) of records).

☐ If PHI involved: lawful basis under HIPAA (TPO/public health/ops) and "minimum necessary."

☐ Ethics screen completed: 18 U.S.C. § 208 (actual conflicts) and 5 C.F.R. 2635 Subpart E (appearance). Recuse or seek ethics authorization if needed.

☐ ER/LR consulted on process path (e.g., HHS Instruction 752 for discipline; IHM Part 7, Ch. 5 for grievances).

☐ Preservation: issue litigation hold if litigation/EEO/OSC risk; identify custodians and systems (email, Teams, SharePoint, CCTV, badge).

☐ Witness/union considerations observed (e.g., Weingarten rights, CBA triggers).

☐ Non-retaliation reminder to participants; communications neutral and fact-focused.

☐ Data handling: secure storage, access limits, retention per policy; create evidence log.

B. Outside Investigator / Partner (contractor or other agency)

☐ Written instrument executed BEFORE access (LOA/MOA/contract) citing legal authority, scope, deliverables, duration, and agency POC.

☐ Privacy basis documented: Privacy Act routine use or 5 U.S.C. § 552a(m) contractor clause; if PHI, Business Associate/DUA or individual authorization (e.g., IHS-810) as required.

☐ Conflict-of-interest terms included (disclosure, recusal obligations, no adverse interests).

☐ Credentials & confidentiality: ID/credential presentation; NDA and information-handling requirements attached.

☐ Data security: technical/administrative safeguards; return/destroy provisions at closeout.

☐ Preservation/chain of custody requirements spelled out (custodians, systems, export formats, hashes).

☐ Communications boundaries: coordination through agency lead; respect union/employee rights; no directives beyond scope.

☐ Deliverables defined: written report, evidence/index, and findings mapped to the stated scope.

C. Conflicts & Impartiality (applies to all)

☐ Screen for actual and apparent conflicts at assignment; document outcome and any recusals.

☐ If necessary, obtain written ethics authorization or reassign to a neutral fact-finder.

☐ Keep accusers/subjects out of investigative decision roles; designate a neutral deciding official.

D. Documentation & Escalation

☐ Authority file: assignment memo, policy cites, and (if outside) LOA/MOA/contract and privacy/BAA terms.

☐ Key POCs listed: ER/LR, Ethics, Privacy/HIPAA, OGC/Agency Counsel, and CIO/IT Custodian contacts.

☐ Disputes plan: how to address privilege blocks/obstruction (certify questions, protective orders, court consult).

☐ Closeout: final report, evidence index, corrective-action tracking, and lessons-learned note to leadership.

Deposition Questions for Turnage v. HHS Depositions

I. Deposition Questions for Debra Ward Lund (COO/Acting CEO)

A. Foundational Questions & Knowledge of Procedures

1. Please state your full name and identify every title you held from November 2022 through June 2023, including any acting roles, and state who you reported to in each role.
2. Please list all training you have completed concerning EEO principles, anti-retaliation, EEOC Management Directive 110, FMLA administration, hostile work environment response, workplace violence prevention, and federal records retention.
3. In your affidavit, you state your role as CEO is "unique" and that you "cannot be part of the investigation" in a personnel matter. Could you elaborate on why you believe it is critical for you to remain separate from an investigation?
4. Would you agree that a key part of remaining separate is to avoid any action that could influence parties, compromise confidentiality, or taint the integrity of the process?

B. Breach of EEO Confidentiality (Turnage Complaint vs. Lee)

1. On March 3, 2023, you received an email from Mr. Turnage constituting a formal EEO complaint of sexual harassment against Ms. Candace Lee. What was the first action you took upon receiving that email?
2. Was your first action to contact the EEO office or an ER/LR specialist to ensure proper procedure was followed?
3. Your affidavit states you went "immediately" to Ms. Lee's office. How do you reconcile that action with your testimony that you "cannot be part of the investigation"?

5. Please describe what that program entails. Does it teach hospital staff techniques for verbal de-escalation and managing agitated individuals?
6. To be clear, is it your testimony that you selected an employee whom you believed to have 'temper issues' to be responsible for training all hospital staff on how to de-escalate crises and manage aggression non-violently?
7. Your email response to Ms. Nash characterized her detailed feedback as "kind words" and immediately pivoted to praising Ms. Benjamin. Why did you dismiss her substantive feedback in this way?
8. You copied Ms. Benjamin—the accuser—on your reply to Ms. Nash, who was supporting Mr. Turnage. Did you consider that this action could be perceived as intimidating and create a chilling effect, warning other employees not to support Mr. Turnage? What agency policy supports copying an accuser on a response to a supporting witness?
9. This exculpatory email from Ms. Nash directly contradicts the justification for placing Mr. Turnage on a punitive detail. Can you explain why this email was not included as evidence in the agency's Report of Investigation for this matter? Who made the decision to exclude it?

E. Disparate Treatment of Complaints (Turnage vs. Greve)

1. You were aware, were you not, that in December 2022, five employees, including a supervisor, filed formal hostile work environment complaints against Ms. Tonie Greve?
2. What steps did you, as the Acting CEO, take to ensure that these five formal complaints were thoroughly and impartially investigated?
3. To your knowledge, was Ms. Greve ever placed on administrative leave, detailed out of her position, or escorted from the facility while these complaints were pending?

4. Was Ms. Greve ever disciplined as a result of those five complaints?
5. Can you explain why the agency took no apparent action in response to five separate, formal complaints against Ms. Greve, yet took immediate and severe action—including involving law enforcement—against Mr. Turnage based on a single, uncorroborated allegation made by Ms. Greve's friend?
6. How do you reconcile this disparity in treatment with the agency's EEO policy and your responsibility as CEO to ensure fair and equal treatment for all employees?

F. Involvement of Law Enforcement

1. Was the Phoenix Police Department contacted on March 21, 2023, regarding the allegation against Mr. Turnage?
2. Who made the decision to contact the police? What specific threat-assessment policy or risk matrix authorized this action for an uncorroborated verbal allegation?
3. Provide the names of any other employees in the past three years against whom there were uncorroborated verbal allegations. In how many of those instances were the police called?
4. Do you recall telling Mr. Turnage after this incident that the Phoenix Police were *never* called?
5. If the police were in fact called, why did you tell Mr. Turnage that they were not?

G. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?

4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Are you aware that under the Whistleblower Protection Act, 5 U.S.C. § 2302, a 'detail' or 'reassignment' is defined as a 'personnel action'? Did you consider, prior to detailing Mr. Turnage, that taking such a significant personnel action almost immediately after he engaged in protected EEO activity could constitute a Prohibited Personnel Practice?
9. Before taking any of the actions against Mr. Turnage in March and April 2023, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

H. Compliance with Federal Law on Investigative Leave Extensions

1. Federal law, specifically the Administrative Leave Act of 2016, codified at 5 U.S.C. § 6329b, governs the use of administrative leave for federal employees during an investigation. Were you aware of this specific federal law when you placed Mr. Turnage on administrative/investigative leave?
2. Given that Mr. Turnage was placed on paid leave pending an investigation by his supervisors, why was he placed on general 'administrative leave' under 5 U.S.C. § 6329a, and not the specific 'Investigative Leave' mandated by 5 U.S.C. § 6329b and your agency's own policy, HHS Policy 630-2? Were you not aware of this distinction?

3. This statute requires that after an initial period, an agency must provide the employee with a written explanation of the reasons for any extension of the leave. Did you provide Mr. Turnage with such a written explanation for why his investigative leave was being extended?
4. The law also requires the agency to maintain a record of the reasons for the extension. Was a formal written record created documenting the specific reasons for extending Mr. Turnage's leave beyond the initial period?
5. Before extending the leave, did you consult with legal counsel or ER/LR to ensure you were in full compliance with the procedural requirements of 5 U.S.C. § 6329b?
6. If no written explanation was provided to the employee or maintained in the record, please explain why the agency failed to comply with this federal law.

II. Deposition Questions for Candace Lee (Chief Nursing Officer)

A. Background and Supervisory Role

1. Please state your full name and your position at PIMC from March 2022 to March 2023.
2. During this period, you were Mr. Turnage's second-line supervisor, correct?

B. The Sexual Harassment Allegation

1. Please describe the incident in November 2022 when you gave Mr. Turnage a hug. What led up to this physical contact?
2. You testified he "agreed" to the hug. What were your exact words when asking for his consent, and what were his exact words in response?
3. Did it occur to you that a supervisor initiating a hug with a subordinate in the workplace could be perceived as inappropriate?

4. In December 2022, you gave Mr. Turnage a holiday card in which you wrote, “P.S. I still don’t regret that hug!” Why did you feel it was necessary to add that note?
5. Were you aware at the time that this note could reinforce the perception of an unwelcome physical advance?
6. When did you first learn that Mr. Turnage had filed a sexual harassment complaint against you? Who informed you, and what was your immediate reaction?
7. After being informed by Ms. Ward Lund, were you provided any guidance from legal counsel, EEO, or ER/LR on how to conduct yourself to avoid any appearance of retaliation? Did you discuss the complaint with Ms. Benjamin, Mr. White, or any other employee?

C. The PMAP Score (Claim 2)

1. You were the reviewing official for Mr. Turnage’s 2022 PMAP, which was rated by Mr. Jason White, correct?
2. You and Mr. White both admit to "unintentionally" failing to complete an entire section of his PMAP. Can you explain how two levels of management review missed an entire required section of a standard performance appraisal?
3. HHS Instruction 430-1 requires Rating and Reviewing Officials to ‘Ensure that plans meet all requirements as outlined in this policy.’ How do you reconcile this requirement with your admission that you approved a PMAP for Mr. Turnage that was missing an entire required section? Would you agree that this constitutes a failure to follow agency policy?
4. In your affidavit, you stated that after Mr. Turnage appealed, his "initial score did not change." However, Ms. Ward Lund and Mr. White both testified the score was raised to a 3.5. Can you explain this direct contradiction in your testimony? Which is it?

5. At the time you reviewed and approved Mr. Turnage's PMAP, were you aware that federal law—specifically Title VII—prohibits retaliating against an employee for reporting harassment?
6. Did you consult with HR, EEO, or legal counsel before finalizing the PMAP score for an employee who had accused you of harassment to ensure the process was fair and free from any appearance of retaliation? If not, why not?

D. Handling of Hostile Work Environment Complaints Against Ms. Greve

1. As the Chief Nursing Officer, were you aware that five of your subordinate nursing staff, including a Supervisory Nurse, filed formal hostile work environment complaints against Ms. Tonie Greve in December 2022?
2. What specific actions did you take, in your capacity as CNO, to address these serious allegations and ensure the well-being of the nursing staff?
3. Did you recommend or initiate an investigation into Ms. Greve's conduct?
4. Did you recommend that Ms. Greve be temporarily detailed or moved while the complaints were being adjudicated to mitigate the ongoing hostile environment?
5. Why did these complaints, which came from multiple sources, result in no discernible management action to protect the employees who filed them?

E. Handling of Internal Complaints (Benjamin Incident)

1. Are you aware of an incident in the Employee Health unit where Ms. Brandi Benjamin allegedly confronted Mr. Turnage and demanded he leave because Ms. Tonie Greve was uncomfortable?
2. Did Mr. Turnage file a formal complaint with you regarding Ms. Benjamin's conduct in that incident?
3. What specific actions did you take after receiving that complaint? Did you launch a formal inquiry or investigation?

4. If no investigation was conducted, please explain why not. What was the disposition of that complaint?

F. The March 21st Incident (Administrative Leave)

1. In your affidavit, you state you were "not aware of these events" and had been removed from Mr. Turnage's supervisory chain. Are you testifying that as Chief Nursing Officer, you were completely unaware that one of your subordinate Supervisory Nurses was accused of a violent threat, placed on leave, and escorted from the building by security?
2. When did you first learn of these events, and who informed you?
3. Did you participate in any meetings or discussions regarding the decision to place Mr. Turnage on administrative leave or the subsequent 120-day detail?

G. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?

8. Before making any decisions related to Mr. Turnage after he filed his complaint against you, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

III. Deposition Questions for Brandi Benjamin (First-Line Supervisor)

A. Background and Relationship with Involved Parties

1. Please state your full name and your position at PIMC in January through April of 2023.
2. Please describe your relationship with Ms. Tonie Greve. Would you characterize it as a personal friendship or simply a professional one?
3. How often do you socialize with Ms. Greve, either during or outside of work hours?
4. You were aware that in December 2022, Mr. Turnage and four of his nurses filed a formal hostile work environment complaint naming your friend, Ms. Greve, as the responsible party, correct?
5. Did your friendship with Ms. Greve influence your perception of Mr. Turnage or your actions on March 21, 2023?

B. Subsequent Confrontations and Uninvestigated Complaints

1. Let's discuss an incident that occurred in September 2024 in the Employee Health unit. Do you recall a time when you confronted Mr. Turnage while he was in Employee Health for a legitimate appointment?
2. Is it true that you told him he needed to leave the area immediately because your friend, Ms. Tonie Greve, felt uncomfortable with his presence?
3. Are you aware that Mr. Turnage subsequently filed a formal complaint against you with your direct supervisor, Ms. Candace Lee, regarding this confrontation?
4. To your knowledge, was that complaint ever investigated?

C. The Alleged Threat on March 21, 2023

1. Let's focus on the events of March 21, 2023. You allege you heard Mr. Turnage say, "get [Ms. Greve] out of my unit before I beat the fucking shit out of her." Is that an exact quote?
2. You stated in your affidavit that Ms. Ashley Krumenacker was present and heard this comment. Is that still your testimony?
3. Ms. Krumenacker, the sole witness you identified, testified under oath that she "did not hear the comment in question." Can you explain this direct contradiction? Is it your testimony that Ms. Krumenacker is lying under oath?
4. What were your immediate actions after hearing this alleged threat? Who was the first person you reported it to, and when?
5. Let's create a timeline for your communications on March 21st. After the alleged incident, did you speak with Ms. Debra Ward Lund? What time was that? Was it in person, by phone, or by text? What was the substance of that conversation?
6. Did you speak with Ms. Candace Lee on March 21st? What time? What was the substance of that conversation?
7. At what point did you learn that Mr. Turnage would be placed on leave and escorted out? Who informed you of that decision?
8. You testified you became aware of Mr. Turnage's prior protected EEO activity from an email he sent you on the morning of March 21, 2023. Is it correct that you made this accusation against him just hours after learning he had engaged in protected activity?
9. Were you aware of the anti-retaliation provisions under federal law, Title VII? Before you reported this uncorroborated allegation, did you consult with HR, ER/LR, or legal

counsel about the significant legal risk of being accused of retaliation, given the timing? If not, why not?

D. Handling of FMLA Paperwork

1. You testified Mr. Turnage's FMLA paperwork was incomplete on multiple occasions. Were you trained on the specific requirements of the Family and Medical Leave Act?
2. Federal regulations at 29 C.F.R. § 825.305(c) require an employer to provide *written* notice specifying what information is needed to cure an incomplete certification and give the employee at least seven days to do so. Did you ever provide Mr. Turnage with such a written notice?
3. 29 CFR § 825.305(c) requires you to provide an employee with *written notice* of any deficiency in their FMLA certification and give them seven days to cure it. You've testified you repeatedly told Mr. Turnage his paperwork was 'incomplete.' Did you ever provide him with the formal written notice required by federal law? If not, why not?
4. If not, why did you fail to follow this specific federal regulation? Did you consult with HR or legal counsel about the legally required procedure for handling FMLA certifications?
5. Mr. Turnage's FMLA request was ultimately approved on April 13, 2023. Did he provide any additional medical information between your final verbal request and the date of approval?
6. If no new information was provided, why was the paperwork you repeatedly deemed "incomplete" suddenly sufficient for approval?

E. Treatment of Other Nurses

1. Let's discuss the other four nurses who joined Mr. Turnage in the hostile work environment complaint against Ms. Greve. Please name them.

2. What is the current employment status of each of those four nurses?
3. Is it true that shortly after you took over Mr. Turnage's unit, you directed HR to rescind a promotion or new position offer that had been extended to one of those nurses, Ms. Frost? On what basis?
4. Is it true that another of those nurses, Ms. Barr, resigned and stated she was leaving because she found the work environment under your supervision to be toxic and hostile?

F. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Before making any decisions related to Mr. Turnage after learning of his EEO activity, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

IV. Deposition Questions for Jason White (Former Supervisor / "Investigator")

A. Background and PMAP Dispute

1. Please state your full name and confirm the dates you served as Mr. Turnage's first-line supervisor.
2. You were the rating official for his 2022 PMAP, correct? You testified that you and Ms. Lee "unintentionally failed to complete one section." How did this error occur?
3. You were aware that Mr. Turnage filed a grievance over this PMAP and a related sexual harassment complaint against Ms. Lee, correct?
4. In that EEO matter, you were identified as a Responsible Management Official, or RMO. Is that correct?
5. So, by March 2023, you were a named party in an active EEO dispute initiated by Mr. Turnage?

B. Appointment and Conduct as "Investigator"

1. On March 21, 2023, you were assigned to conduct an administrative investigation into the alleged threat by Mr. Turnage. Who specifically assigned you this role?
2. Were you provided a formal letter of authorization appointing you as the investigator that outlined your specific duties and responsibilities?
3. What are your qualifications or specialized training to conduct employee misconduct investigations?
4. Are you aware of the legal standards for impartiality in federal administrative investigations, as outlined in EEOC's Management Directive 110?
5. HHS Instruction 752 requires an 'objective consideration of all relevant facts' in an inquiry. How could you provide objective consideration when you were investigating an employee who had just filed a sexual harassment complaint against your direct supervisor, Ms. Lee? Did you not perceive this as a clear conflict of interest?

6. When you were assigned this role, did you inform your superiors that you were an RMO in Mr. Turnage's active EEO complaint and therefore had a clear conflict of interest?
7. Did you consult with legal counsel or the EEO office about whether it was legally permissible for you to investigate an employee who had named you as an RMO in an active EEO complaint? If not, why not?
8. Did you produce a written report or a summary of findings for your investigation? If so, to whom did you provide it? If not, why not? Were you instructed not to complete a report?

C. Witness Tampering Allegations

1. You interviewed Ms. Ashley Krumenacker as the sole witness, correct?
2. In your affidavit, you deny tampering with her statement and claim the statement you prepared was "based on the facts as she saw them." Is that still your testimony?
3. Ms. Krumenacker testified under oath that you "wanted her to sign a statement…which did not reflect what she had told him." She further testified you were "trying to get her to agree" with Ms. Benjamin's version of events. Is Ms. Krumenacker, a commissioned officer, lying under oath?
4. Did you receive an email from Ms. Krumenacker on March 22, 2023, stating, "The statement you have drafted does not accurately reflect our conversation nor what I witnessed yesterday"?
5. Are you aware that under 5 U.S.C. § 2302(b)(4), it is a Prohibited Personnel Practice to 'deceive or willfully obstruct any person' in a matter related to their employment rights? How do you explain your attempt to have Ms. Krumenacker sign a statement she explicitly told you was inaccurate in light of this federal statute?

6. Are you aware of federal laws prohibiting obstruction of an investigation or tampering with a witness? After being put on notice in writing that your draft statement was inaccurate, did you consult with legal counsel on how to proceed? What steps did you take?

D. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Before making any decisions related to Mr. Turnage after he identified you as an RMO, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

V. Deposition Questions for Ashley Krumenacker (Neutral Witness)

1. Please state your full name and your position at PIMC in March 2023.

2. Please describe the events in Mr. Turnage's office on March 21, 2023. Who was present, and what was the topic of conversation?
3. Ms. Brandi Benjamin testified that she heard Mr. Turnage say, in your presence, "get [Ms. Greve] out of my unit before I beat the fucking shit out of her." Did you hear Mr. Turnage make that statement or any statement similar to it?
4. To be perfectly clear, are you certain you did not hear that comment?
5. You were later interviewed by Mr. Jason White. Please describe that interaction.
6. Did Mr. White present you with a pre-written statement to sign? Did that statement accurately reflect what you had told him and what you had witnessed?
7. In your sworn affidavit, you stated Mr. White "was trying to get her to agree with the fact that Complainant had allegedly made the comment." Please describe exactly what he said or did that gave you this impression.
8. Did you feel pressured by Mr. White to change your account or agree with a version of events you knew to be untrue?
9. Did you inform Mr. White, either verbally or in writing, that his draft statement was inaccurate? What was his response?

VI. Deposition Questions for Tonie Greve (Nurse)

1. Please state your full name and your position at PIMC from December 2022 through April 2023.
2. Please describe your professional relationship with Ms. Brandi Benjamin. Would you describe her as a personal friend?
3. Are you aware that in December 2022, five of your colleagues, including your supervisor Mr. Turnage, filed formal hostile work environment complaints against you?

4. Were you ever formally investigated or disciplined as a result of those five complaints?
5. To your knowledge, had you filed EEO complaints against every one of your direct supervisors at PIMC prior to Mr. Turnage supervising you?
6. What was your understanding of the events of March 21, 2023, that led to Mr. Turnage being removed from the facility? When and how did you learn about the alleged threat against you?
7. Did you have any discussions with Ms. Benjamin about Mr. Turnage on or before March 21, 2023? If so, what was the substance of those discussions?

VII. Deposition Questions for Dr. McCabe (Detail Supervisor)

1. Please state your full name and your role at PIMC in 2023.
2. Mr. Turnage was placed on a 120-day detail under your direct supervision, correct? What were you told about the reason for this detail?
3. During the entire 120-day period you supervised him, please describe his work performance, professionalism, and temperament.
4. Ms. Debra Ward Lund testified that Mr. Turnage had "temper issues." Did you ever witness him display any temper issues, raise his voice inappropriately, or act unprofessionally in any way?
5. Based on your direct, personal supervision of him, did you find any evidence to support the allegation that he had temper issues?
6. Do you recall a conversation with Ms. Ward Lund in which she said of Mr. Turnage, "Yes he is [nice] until you piss him off!"?
7. What was your reaction to that comment? Did it seem consistent or inconsistent with your own experience supervising him?

8. Did any manager ever ask you for a formal or informal assessment of Mr. Turnage's performance while he was on detail with you?
9. Based on your observations, was there any reason Mr. Turnage was unfit to return to his supervisory position after the detail ended? Were you ever consulted on that decision?

VIII. Deposition Questions for Kathy Dill (Current COO)

A. Foundational Questions & Knowledge of Case History

1. Please state your full name and your current title. When did you assume the role of Chief Operating Officer?
2. Please describe your duties and responsibilities as COO.
3. When you assumed your role, were you briefed on pending or prior EEO matters and personnel issues, including the history of EEO complaints filed by Mr. Turnage in 2023?
4. What is your understanding of the events of March 2023 that led to Mr. Turnage being placed on administrative leave and a 120-day detail?
5. Are you aware that the central allegation leading to those actions was directly contradicted by the sole, neutral witness?
6. Are you aware that Mr. Turnage has engaged in legally protected EEO activity and that any subsequent adverse actions against him could be perceived as retaliation?

B. 2025 Administrative Leave Decision

1. Let's discuss the events of June 2025. You placed Mr. Turnage on administrative leave again, correct?
2. What was the specific allegation or incident that formed the basis for this new administrative leave?

3. Who brought this allegation to your attention?
4. What specific steps did you take to investigate the allegation before placing him on leave? Did you interview any witnesses? Did you review any documents or records?
5. Who was the deciding official for this action? What specific risk were you trying to mitigate by removing him from the workplace?
6. Was a formal administrative investigation initiated? If so, who was appointed as the investigator? What steps did you take to ensure the investigator was neutral and had no conflicts of interest?

C. Unattainable Deadlines and Procedural Fairness

1. Is it correct that you directed Mr. Turnage to return all government-issued property—including his laptop, cell phone, and badge—within less than four hours of being notified of his administrative leave?
2. What was the justification for this extremely short deadline?
3. What specific agency policy or regulation governs the timeline for returning government property upon being placed on administrative leave? Please identify the policy number and section.
4. Is a four-hour return deadline standard procedure for all employees placed on administrative leave at PIMC?
5. Please provide examples of other employees who were given a similarly short deadline.
6. If this is not standard procedure, why was this specific, unattainable deadline imposed on Mr. Turnage?
7. Were you aware that such a deadline could be perceived as punitive and harassing, rather than a standard administrative procedure?

D. Breach of Confidentiality (June 2025 Investigation)

1. After placing Mr. Turnage on leave in June 2025, did you have any discussions about the pending investigation with any other managers or employees?
2. Please identify every person you spoke with regarding the substance of the investigation. For each person, what was the date of the conversation and what was discussed?
3. Are you familiar with the rules requiring that administrative investigations be kept confidential to protect the integrity of the process and prevent witness tainting?
4. Did you discuss the investigation with individuals who were not directly involved in the fact-finding process? If so, why?
5. Were you concerned that these discussions could compromise the investigation, give an appearance of improper influence, or constitute a form of gossip that would contribute to a hostile work environment for Mr. Turnage?

E. Pattern of Retaliation

1. Given your awareness of Mr. Turnage's prior EEO activity, did you consider that placing him on administrative leave again, based on what appears to be another unsubstantiated allegation, could be perceived as a continuation of the retaliatory pattern from 2023?
2. Did you consult with the EEO office or legal counsel about the potential for a claim of retaliation under Title VII before taking this action? If not, why not?
3. How does imposing an aggressive, four-hour deadline for the return of property align with the agency's stated commitment to preventing retaliation against employees who engage in the EEO process?
4. Looking at the events of 2023 and the events of 2025 together, can you explain why Mr. Turnage has been subjected to repeated administrative leaves and investigations,

while other employees with multiple, corroborated complaints against them, like Ms. Greve, have faced no apparent consequences?

F. Allegations of Whistleblower Retaliation

1. You have stated that the June 2025 administrative leave was to investigate an allegation that Mr. Turnage created a hostile work environment. Is that correct?
2. What specific actions or communications by Mr. Turnage were the basis for this hostile work environment allegation?
3. Is it true that the conduct you are referencing involved Mr. Turnage reporting what he believed to be violations of law, rule, or regulation to management or an investigative body?
4. Are you familiar with the Whistleblower Protection Act (WPA) and the protections it affords to federal employees who make such disclosures?
5. Are you aware that making disclosures about potential gross mismanagement, a gross waste of funds, an abuse of authority, or a substantial and specific danger to public health or safety is considered legally protected activity?
6. Before placing him on leave, did you consult with legal counsel or review guidance from the Office of Special Counsel to determine whether the conduct you labeled as 'hostile' was in fact legally protected whistleblowing activity? If not, why not?
7. What steps did you take to distinguish between legitimate whistleblowing and conduct that creates a hostile work environment?
8. Are you aware that taking a personnel action against an employee *because* they engaged in protected whistleblowing constitutes unlawful retaliation?
9. Given that you took action against Mr. Turnage for what appears to be protected disclosures, how can you be sure your actions were not a violation of federal whistleblower laws?

G. Understanding of EEO and Whistleblower Protection Laws

1. Please describe the training you have received regarding the prevention of retaliation against federal employees who file EEO complaints.
2. In your own words, what constitutes retaliation under Title VII of the Civil Rights Act?
3. Are you aware that taking a materially adverse action against an employee shortly after they engage in protected EEO activity can create a legal inference of retaliation?
4. Please describe the training you have received on the Whistleblower Protection Act (WPA).
5. What is your understanding of a 'protected disclosure' under the WPA?
6. What is your understanding of a 'prohibited personnel practice' under the WPA?
7. Did you consider at any point that Mr. Turnage's communications regarding the hostile work environment for his nurses, or any other reports of mismanagement, could be considered protected disclosures under the WPA?
8. Before making any decisions related to Mr. Turnage, did you consult with legal counsel to ensure your actions would not violate federal EEO and whistleblower protection laws? If not, why not?

H. Compliance with Federal Law on Investigative Leave Extensions

1. Federal law, specifically the Administrative Leave Act of 2016, codified at 5 U.S.C. § 6329b, governs the use of administrative leave for federal employees during an investigation. Were you aware of this specific federal law when you placed Mr. Turnage on administrative/investigative leave?
2. This statute requires that after an initial period, an agency must provide the employee with a written explanation of the reasons for any extension of the leave. Did you

provide Mr. Turnage with such a written explanation for why his investigative leave was being extended?

3. The law also requires the agency to maintain a record of the reasons for the extension. Was a formal written record created documenting the specific reasons for extending Mr. Turnage's leave beyond the initial period?
4. Before extending the leave, did you consult with legal counsel or ER/LR to ensure you were in full compliance with the procedural requirements of 5 U.S.C. § 6329b?
5. If no written explanation was provided to the employee or maintained in the record, please explain why the agency failed to comply with this federal law.

IX. Deposition Questions for Employee & Labor Relations (ER/LR) Representative

1. Please state your name, title, and describe your role and responsibilities for PIMC in 2023.
2. Please identify the agency policy or SOP that governs the response to an employee's alleged verbal threat. Does this policy require immediate removal pending investigation, or does it allow for other mitigating actions?
3. What is the standard procedure when an allegation is uncorroborated by the only witness?
4. What advice did ER/LR provide to Ms. Ward Lund and Ms. Benjamin regarding the March 21 allegation? Was this advice documented?
5. What is the agency's policy regarding FMLA certification? Does it require providing employees with a written notice to cure deficiencies, consistent with federal regulation? Was that policy followed here?

6. Did you advise management that under 29 CFR § 825.305(c), they were legally required to provide Mr. Turnage with a written notice to cure any deficiencies in his FMLA paperwork? If not, why not?
7. Did you advise management that placing an employee on paid leave pending an investigation requires the use of 'Investigative Leave' under 5 U.S.C. § 6329b, not general administrative leave?
8. Were you consulted on the appointment of Jason White as the investigator for the March 21st incident? If so, did you advise management that appointing a direct subordinate of an involved party, Ms. Lee, constituted a conflict of interest that would compromise the objectivity of the investigation?
9. Regarding the five hostile work environment complaints filed against Ms. Tonie Greve in December 2022, what specific advice did ER/LR provide to management?
10. Was that advice documented in writing? If so, please produce that documentation.
11. Did ER/LR advise management that failure to investigate or take action on multiple, corroborated complaints could create significant legal liability for the agency? If so, what was management's response?
12. Please provide comparator data for the last three years. How many other employees have been placed on administrative leave and escorted out by security for an uncorroborated verbal allegation?
13. Conversely, how many employees with five separate hostile work environment complaints filed against them have been allowed to remain in their position without any corrective action?
14. What is the standard procedure for appointing an investigator for an administrative inquiry? Does the policy address appointing an investigator who has a clear conflict of interest, such as being a named RMO in the subject's active EEO case?

X. Deposition Questions for IT Custodian

1. Please state your name, title, and responsibilities regarding data retention and eDiscovery for PIMC.
2. A number of incidents relevant to this case occurred in March and April of 2023. On what specific date was a litigation hold or preservation order issued for this matter?
3. Please identify all custodians (employees) and all data sources (email, Microsoft Teams chats, text messages, network drives, etc.) that were included in that hold.
4. What are the agency's default retention policies for security camera footage, particularly for the office and hallway where the March 21 incident allegedly occurred?
5. Was security camera footage from March 21, 2023, and from September 2024, covering the relevant areas, successfully preserved? If not, why not, and when was it overwritten?
6. What are the default retention policies for Microsoft Teams chats? Can you produce records of all chats, including edited or deleted messages, between Ms. Ward Lund, Ms. Benjamin, Ms. Lee, and Mr. White from March 2023?
7. What system is used for badge access logs? Please explain the retention period for those logs and confirm whether they were preserved for March 21, 2023.

XI. Deposition Questions for Security Officer(s)

1. Please state your name(s) and your position(s) at PIMC on March 21, 2023.
2. Did you escort Mr. Kevin Turnage from the PIMC facility on that day?
3. Who gave you the directive to escort him out? Was it Ms. Debra Ward Lund or someone else?

4. What reason, if any, were you given for this action? Were you told he was a threat?
5. Please describe Mr. Turnage's demeanor and behavior during the escort. Was he cooperative, agitated, aggressive, or calm?
6. Did you create an incident report or make any log entries regarding this event? If so, please describe the contents of that report.
7. Were you on duty when a call was placed to the Phoenix Police Department regarding this incident? Do you have any firsthand knowledge of who made the call or what information was relayed to the police?
8. In your experience at PIMC, how frequently are employees escorted from the facility by security? What are the typical circumstances that lead to such an action?

A. Preservation and Handling of Video Evidence

1. Were you, or was anyone in the security department, asked to review, preserve, or export any video or audio recordings from on or around March 21, 2023, related to the incident with Mr. Turnage?
2. Were you, or was anyone in the security department, asked to review, preserve, or export any video or audio recordings from on or around September 2024 related to any incidents involving Mr. Turnage?
3. If such requests were made, please describe who made them, when they were made, and what actions were taken.
4. What is your knowledge of what happened to those recordings? Were they successfully preserved and provided, or were they unavailable or overwritten?